it would have been open to the party for whom he was called to make an application to the court in the ensuing term to punish him for his contempt in not producing the document in obedience to such *subpœna*. Whether he could require to be sworn not *ad testificandum*, but true answer to make to such questions as the court should demand of him touching the possession or custody of the document, is not now the question. *Perhaps* he might; but we are clearly of opinion that he has no right to require that a party bringing him into court for the mere purpose of producing a document should have him sworn in such a way as to make him a witness in the cause, when it may often happen that he is a mere depository, and knows nothing of the documents of which he has the custody."

Treating the requirement to produce as separable from the requirement to testify generally what one knows in the cause, it follows that the latter may be omitted from the subpœna without invalidating the former. This course does not impair any right either of the opposing party or of the person responding to the subpœna. The latter may still have the opportunity to which he has been held entitled (*Aiken* v. *Martin*, *supra*), of showing under oath the reasons why he should not be compelled to produce the document. For this right does not depend upon the *ad testificandum* clause, but is incident to the requirement to produce.

Where the documents of a corporation are sought the practice has been to subpœna the officer who has them in his custody. But there would seem to be no reason why the subpœna *duces tecum* should not be directed to the corporation itself. Corporate existence implies amenability to legal process. The corporation may be sued; it may be compelled by mandamus, and restrained by injunction, directed to it. Possessing the privileges of a legal entity, and having records, books and papers, it is under